

Rajat Gupta & Ors vs State & Anr on 7 December, 2020

Author: Anu Malhotra

Bench: Anu Malhotra

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CrI.M.C. No. 5969/2019

RAJAT GUPTA & ORS.

Through:

..... Petitioners

Ms.Rajdipa Behura, Advocate with
Mr.P.Kari and Ms. Neha Lingwal
Advocates

versus

STATE & ANR.

Through:

..... Respondents

Mr. Kamal Kumar Ghei, APP for
State with ASI Arvind
Mr.Nikhil Malhotra, Adv for R-

CORAM:

HON'BLE MS. JUSTICE ANU MALHOTRA
ORDER

% 07.12.2020 (Through Video Conferencing) The matter having not been taken up on 25.3.2020 is indicated to have been renotified for the date 5.2.2021 in view of the present pandemic and is taken up on CrI.M.A. No. 16920/2020 filed on behalf of the petitioner seeking an early hearing and seeking that the matter be taken up on 15.12.2020 to which date it had also been renotified submitting to the effect that the petitioner and the respondent No.2 have since arrived at a settlement and that the petitioner No.1 and the respondent No.2 are soon to be divorced through a decree of divorce through mutual consent under Section 13 B (2) of the Hindu Marriage Act, in view of the settlement arrived at between the parties as per Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:09.12.2020 12:49:47 This file is digitally signed by PS to HMJ ANU MALHOTRA.

their joint statements dated 1.2.2020 before the learned Principal Judge, Family Courts, in HMA No. 612/2020. It is informed on behalf of the petitioner that the matter is now fixed for proceedings under Section 13B(2) of the Hindu Marriage Act, 1955, for 18.1.2021 before the learned Principal Judge, Family Court concerned.

Notice of the application is issued to the State. In the circumstances, the copy of the decree of divorce, if any, between the petitioner No.1 and the respondent No.2 be placed on record by the petitioner.

The State shall also verify qua the stated settlement arrived at between the parties and the Investigating Officer of the case is also directed to be present for identification of the petitioner and the respondent No.2. The parties are also directed to be present through video conferencing.

The matter be renotified for the date 5.2.2021 ANU MALHOTRA, J DECEMBER 07, 2020/SV
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